**Calendar Line 1**

**Case Name:** *In the matter of: THE RITA P. CATALANO TRUST OF 2000*
**Case No.:** 22PR193527

## INTRODUCTION

In 2010, Rita Catalano ("Decedent") loaned her daughter, Regina Drysdale ("Respondent") $300,000 allegedly for the purposes of bridging a gap in funding due to the pending sale of Respondent's real property. Thereafter, Decedent made another loan of $150,000 to Michelle McCarthy, Decedent's granddaughter and Respondent's daughter. The terms of the loan appear to be in dispute but it is undisputed that Respondent agreed to pay interest on both loans. Decedent passed away on January 5, 2021.

On October 25, 2022, Petitioners Lisa Boyer and Daniel Catalano ("Petitioners"), trustees of the Rita P. Catalano Trust of 2000, initiated this action by filing a petition to confirm property. In it, they alleged causes of action for (1) financial elder abuse, (2) promissory fraud, (3) conversion, (4) accounting, and (5) declaratory relief. The petition alleges that Respondent failed to repay the loans and made misrepresentations about same.

On May 13, 2026, this Court issued an order denying Petitioners' motion to compel further responses to their special interrogatories, set three, numbers 10 through 31 and her requests for production of documents, set five, numbers 19 through 35 and production of the requested documents. In connection with her opposition to the motion to compel, Respondent had requested sanctions but she did not indicate the amount requested, nor provide any supporting documentation. Accordingly, the Court denied the request for fees without prejudice to making a noticed motion to same.

Currently before the court is Respondent's motion for attorney fees incurred in opposing Petitioners' unsuccessful motion to compel. Petitioners have opposed the motion and Respondent has filed a reply.

## DISCUSSION

### I. Legal Background

The Civil Discovery Act provides for mandatory sanctions when a party unsuccessfully makes a motion to compel unless the moving party acted with substantial justification or other circumstances make the imposition of sanctions unjust. "The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (§ 2030.300, subd. (d).) Section 2031.310, subdivision (h) similarly provides, "Except as provided in subdivision (j), the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust."

"Ordinarily, discovery motions are resolved by declaration. (Cal. Rules of Court, rule 3.1306(a) ['Evidence received at a law and motion hearing must be by declaration or request for judicial notice without testimony or cross-examination, unless the court orders otherwise for good cause shown.'].) If the party seeking a monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with 'substantial justification.' [Citations.]" (*Doe v. United States Swimming, Inc*. (2011) 200 Cal.App.4th 1424, 1436.) "[T]he phrase 'substantial justification' has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact." (*Id.* at p. 1434.)

### II. Merits of the Motion

Respondent requests $9,924.50 in sanctions against Petitioners and/or their counsel. Her counsel contends that he, another attorney, and a legal assistant spent a total of 21.5 hours working on the motion at $550, $375, and $95 per hour.

Petitioners argue that they acted with substantial justification in seeking the discovery at issue in the motion to compel because the discovery sought is relevant to the claims raised in the instant case. They rely, for the most part, on their relevance arguments and evidence provided in support of the motion to compel. However, they also assert that they received in discovery a 2024 email from Respondent to her counsel mentioning the RPC Realty Trust.

As the Court explained in its order denying the motion to compel, "[t]he discovery requests at issue can be generally separated into two main categories: (1) requests seeking information regarding RPC Realty Trust, which allegedly held the home sold by Rita, the proceeds of which were used to fund the loans to Objector and requests regarding the home itself (the Marstons Mills property) and (2) requests regarding a petition Objector filed in San Luis Obispo to appoint a successor trustee for the RPC Realty Trust and the allegations of fraudulent transfers Objector made in that petition." (May 13, 2026 Order, p. 8:20-26.) At the time of the motion to compel, the Court did not see the relevance of information regarding the RPC Realty Trust or the source of the funds loaned to Respondent to the outcome of the instant petition, which only raises the failure to repay the loans as the factual basis for the claims asserted therein. Petitioners argue that they assert a financial elder abuse claim in the petition, which is broader than simply the failure to repay the loans. But, the elder abuse claim is expressly predicated on the fourteen paragraphs preceding it, which discuss Respondent approaching Decedent to seek the loans at issue, promising that the loans would be secured, convincing Decedent to make the loans, but failing to pay the interest on the loans and misrepresenting that the loans were paid in full. (Petition, ¶¶ 4-11, 15 [incorporating paragraphs 1 through 14 by reference].) The Court still does not see how either the source of the funds that were loaned to Respondent or the RPC Realty Trust are relevant based on the claims alleged in the petition. Further, as discussed in the May 13, 2026 Order, the discovery requests also sought current information regarding the RPC Realty Trust, which would not speak to the source of loan funds or the failure to repay the loans.

Nor is the Court convinced by Petitioners' argument that they reasonably believed a prior court order would allow them to seek the discovery sought in the motion to compel. As Petitioners correctly indicate, on March 19, 2025, the Court (Hon. Duong) did indicate that "going forward, all discovery in dockets 22PR193527 and 22PR191805 will be applicable to both cases without regard to the case number listed on the notice." (See Declaration of Nancy

M. Battel in Support of Opposition to Motion for Sanctions, Ex. B.) But the Court also expressly stated that the discovery must be "relevant and admissible in the case in which it is introduced." (*Ibid*.) Here, the Court has found the discovery irrelevant to the petition in the instant case. Under these circumstances, the court does not find that Petitioners acted with substantial justification.

**CONCLUSION**

The motion is GRANTED. Petitioners and/or their counsel are ordered to pay Respondent's counsel $9,924.50 within 60 days of the date of the court's final order on this matter.

The Court will prepare the final order.

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**Calendar Line 2**

**Case Name:** *In the matter of: THE ESTATE OF SUSAN JEE*
**Case No.:** 24PR197700

## INTRODUCTION

Decedent Susan Jee ("Decedent") executed a will in 2015. On July 22, 2024, Michael Liou ("Petitioner"), Decedent's nephew, filed a petition seeking to probate the 2015 will and to be named personal representative.

On January 17, 2025, the Court held a hearing on the petition. At the hearing, the Court learned that there was an objection to the petition for probate from Barry Burr ("Objector") but it had not yet been filed. The Court continued the hearing to allow Objector to file his objection. He did so on January 17, 2025. In it, he asserted that he was Decedent's boyfriend and that he believes that Decedent executed a later will before her passing. On January 10, 2025, Petitioner filed a reply to the objection. On Petitioner's motion, the Court struck the objection with leave to amend. An amended objection was filed on July 12, 2025.

On October 14, 2025, Objector's counsel agreed in open court to the admission of the 2015 will and the 2015 will was admitted to probate. Meanwhile, on October 19, 2025, Objector filed a petition for probate of lost will alleging that Decedent had executed a later will shortly before her death. Currently before the Court is Petitioner's motion for sanctions against Objector and his attorney. The motion is unopposed.

## DISCUSSION

Petitioner seeks $97,161.42 against Objector and his counsel pursuant to Code of Civil Procedure sections 128.7 and 128.5 and California Rules of Court, rule 2.30.

### I. Legal Background

Code of Civil Procedure section 128.5 states, in pertinent part, "A trial court may order a party, the party's attorney, or both, to pay the reasonable expenses, including attorney's fees, incurred by another party as a result of actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay." (§ 128.5, subd. (a).) " 'Actions or tactics' include, but are not limited to, the making or opposing of motions or the filing and service of a complaint, cross-complaint, answer, or other responsive pleading. The mere filing of a complaint without service thereof on an opposing party does not constitute 'actions or tactics' for purposes of this section." (§ 128.5, subd. (b)(1).) " 'Frivolous' means totally and completely without merit or for the sole purpose of harassing an opposing party." (§ 128.5, subd. (b)(2).) " 'To meet this standard, a party requesting the award must show that "any reasonable attorney would agree the [action taken] was totally devoid of merit." ' " (*Brubaker v. Strum* (2023) 87 Cal.App.5th 497, 511.)

"Expenses pursuant to this section shall not be imposed except on notice contained in a party's moving or responding papers or, on the court's own motion, after notice and opportunity to be heard. An order imposing expenses shall be in writing and shall recite in detail the action or tactic or circumstances justifying the order." (§ 128.5, subd. (c).) "If, after notice and a reasonable opportunity to respond, the court issues an order pursuant to subdivision (a), the court may, subject to the conditions stated below, impose an appropriate sanction upon the party, the party's attorneys, or both, for an action or tactic described in subdivision (a). In determining what sanctions, if any, should be ordered, the court shall consider whether a party seeking sanctions has exercised due diligence." (§ 128.5, subd. (f)(1).)

Section 128.7, subdivision (b) provides:

> By presenting to the court, whether by signing, filing, submitting, or later advocating, a pleading, petition, written notice of motion, or other similar paper, an attorney or unrepresented party is certifying that to the best of the person's knowledge, information, and belief, formed after an inquiry reasonable under the circumstances, all of the following conditions are met:
>
> (1) It is not being presented primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation.
>
> (2) The claims, defenses, and other legal contentions therein are warranted by existing law or by a nonfrivolous argument for the extension, modification, or reversal of existing law or the establishment of new law.
>
> (3) The allegations and other factual contentions have evidentiary support or, if specifically so identified, are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.
>
> (4) The denials of factual contentions are warranted on the evidence or, if specifically so identified, are reasonably based on a lack of information or belief.

Section 128.7, subdivision (c) provides, "If, after notice and a reasonable opportunity to respond, the court determines that subdivision (b) has been violated, the court may, subject to the conditions stated below, impose an appropriate sanction upon the attorneys, law firms, or parties that have violated subdivision (b) or are responsible for the violation." "Under . . . Code of Civil Procedure section 128.7 . . ., there are basically three types of submitted papers that warrant sanctions: factually frivolous (not well grounded in fact); legally frivolous (not warranted by existing law or a good faith argument for the extension, modification, or reversal of existing law); and papers interposed for an improper purpose. [Citations.]" (*Guillemin v. Stein* (2002) 104 Cal.App.4th 156, 167.) "A trial court is to apply an objective standard in making its inquiry concerning the attorney's or party's allegedly sanctionable behavior in connection with a motion for sanctions brought under section 128.7. [Citation.]" (*Optimal Markets, Inc. v. Salant* (2013) 221 Cal.App.4th 912, 921.) "[W]hen determining whether sanctions should be imposed, the issue is not merely whether the party would prevail on the underlying factual or legal argument. Instead, courts should apply an objective test of reasonableness, including whether any reasonable attorney would agree that [the claim] is totally and completely without merit. [Citations.]" (*Peake v. Underwood* (2014) 227 Cal.App.4th 428, 448, internal quotation marks omitted.) "[W]hen establishing a claim is factually or legally without merit under Code of Civil Procedure section 128.7, it is not necessary to show the party acted with an improper motive or subjective bad faith." (*Id*. at p. 449.)

"Under the explicit language of section 128.7, subdivision (c), the trial court retains the discretion, upon the finding of a violation of subdivision (b), to determine whether a sanction is warranted in the first instance; and, if so, the type and amount of sanctions warranted." (*Kojababian v. Genuine Home Loans, Inc.* (2009) 174 Cal.App.4th 408, 422 (*Kojababian*).) "Section 128.7, subdivision (c) does not require the imposition of monetary sanctions upon the finding of a violation of section 128.7, subdivision (b); rather, it gives the trial court discretion to impose sanctions based on such a finding." (*Ibid*.)

"In addition to any other sanctions permitted by law, the court may order a person, after written notice and an opportunity to be heard, to pay reasonable monetary sanctions to the court or an aggrieved person, or both, for failure without good cause to comply with the applicable rules." (Cal. Rules of Court, rule 2.30(b).) "A party's motion for sanctions must (1) state the applicable rule that has been violated, (2) describe the specific conduct that is alleged to have violated the rule, and (3) identify the attorney, law firm, party, witness, or other person against whom sanctions are sought." (Cal. Rules of Court, rule 2.30(c).)

**II. Merits of the Motion**

Petitioner argues that Objector should be sanctioned for filing frivolous pleadings, motions, and an opposition to Petitioner's motion to strike.

Here, the motion for sanctions was served and filed on the same day, April 21, 2026. Thus, Petitioner failed to comply with the safe harbor provisions of sections 128.5 and 128.7. "Under section 128.7, the party moving for sanctions must serve the motion on the opposing party, but the motion 'shall not be filed with or presented to the court unless, within 21 days after service of the motion, or any other period as the court may prescribe, the challenged paper, claim, defense, contention, allegation, or denial is not withdrawn or appropriately corrected.' (§ 128.7, subd. (c)(1).) Section 128.5 contains a nearly identical safe harbor provision. (§ 128.5, subd. (f)(1)(B) [sanctions motion 'shall not be filed with or presented to the court, unless 21 days after service of the motion or any other period as the court may prescribe, the challenged action or tactic is not withdrawn or appropriately corrected'].)" (*Transcon Financial, Inc. v. Reid & Hellyer, APC* (2022) 81 Cal.App.5th 547, 550 (*Transcon*).)

"Thus, a party seeking sanctions under sections 128.5 and 128.7 must follow a two-step procedure. [Citation.] First, the moving party must serve on the offending party a motion for sanctions. [Citation.] Service of the sanctions motion triggers the 21-day safe harbor period during which the moving party may not file the motion. [Citation.] That is because the offending party may avoid sanctions by withdrawing the challenged pleading during the 21-day period. [Citation.] Second, if the offending party does not withdraw the challenged pleading during that period, then the moving party may file the sanctions motion. [Citation.]" (*Transcon*, *supra*, 81 Cal.App.5th at p. 550.)

"[T]he law requires strict compliance with the safe harbor provisions. [Citation.] Failure to comply with the safe harbor provisions 'precludes an award of sanctions.' [Citations.]" (*Transcon*, *supra*, 81 Cal.App.5th at p. 551; *Zarate v. McDaniel* (2023) 97 Cal.App.5th 484, 489 ["If a moving party fails to comply with [the safe harbor provision], the sanctions motion must be denied. [Citation.]".])

Here, the problem is not only that the safe harbor provision was not complied with, but that it would have been impossible for Objector to withdraw nearly any of the offending pleadings at the time the motion was served. At the time of filing, the court had already ruled on all motions and had granted Petitioner's petition for probate. Thus, Objector could not have withdrawn them to avoid incurring sanctions. "The law is well settled that the safe harbor provisions preclude a party from seeking monetary sanctions for an offending pleading following a dispositive ruling by the trial court on the pleading." (*Malovec v. Hamrell* (1999) 70 Cal.App.4th 434, 442.) Only Objector's own petition for probate of Decedent's alleged later will remained pending at the time of service of the motion and Objector did not receive the 21-day safe harbor to which he was entitled with respect to that filing. Accordingly, the motion must be denied to the extent it relies on sections 128.5 and 128.7.

As to Rules of Court, rule 2.30, that rule applies "to the rules in the California Rules of Court relating to general civil cases, unlawful detainer cases, probate proceedings, civil proceedings in the appellate division of the superior court, and small claims cases." (Cal. Rules of Court, rule 2.30(a).) As mentioned above, the moving party is required to identify which such rule they contend has been violated. (Cal. Rules of Court, rule 2.30(c).) Here, Petitioner does not identify any Rule of Court he contends has been violated. Accordingly, the motion must be denied to the extent it relies on Rules of Court, rule 2.30.

**CONCLUSION**

The motion is DENIED.

The Court will prepare the final order.

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